



SPONSOR: Rep. Lynn & Rep. Ortega & Sen. Hoffner & Sen. Pinkney
Reps. Burns, Griffith, K. Johnson, Morrison, Neal,
Phillips, Snyder-Hall, Wilson-Anton, Lambert

HOUSE OF REPRESENTATIVES
153rd GENERAL ASSEMBLY

HOUSE BILL NO. 94

AN ACT AMENDING TITLES 10 AND 11 OF THE DELAWARE CODE RELATING TO LAW ENFORCEMENT
COOPERATION IN FEDERAL IMMIGRATION ENFORCEMENT.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF DELAWARE:

Section 1. Amend Chapter 21, Title 10 of the Delaware Code by making deletions as shown by strike through and
insertions as shown by underline as follows:

§ 2115. Federal agency cooperation; restrictions.

(a) A sheriff, deputy, or constable may not cooperate with a federal agency in activity at schools or churches that
relates to immigration enforcement unless the specific cooperation requested by the federal agency is first authorized by the
Delaware Attorney General.

(b) Authorization under subsection (a) of this section must be requested by the supervising authority of the sheriff,
deputy, or constable seeking authorization for cooperation. The request for cooperation must:

(1) Be in writing.

(2) Be submitted at least 72 hours prior to the date of the activity.

(3) State the name of the enforcement agency making the request.

(4) State the reason for the request.

(5) Provide the dates and duration of the activity.

(6) Give a detailed description of the scope of the activity, including:

a. The purpose of the activity.

b. A list of records sought.

c. The names of individuals who may be impacted by the activity.

d. The manner in which the activity will be carried out.

Section 2. Amend Part V, Title 11 of the Delaware Code by making deletions as shown by strike through and
insertions as shown by underline as follows:

Chapter 84B. FEDERAL AGENCY COOPERATION

§ 8401B. Definitions.

23 For the purposes of this chapter, "police officer" means as defined in § 8401 of this title.

24 § 8402B. Federal agency cooperation; restrictions.

25 (a) No police officer may cooperate with a federal agency in activity at schools or churches that relates to
26 immigration enforcement unless the specific cooperation requested by the federal agency is first approved by the Delaware
27 Attorney General.

28 (b) Authorization under subsection (a) of this section must be requested by the supervising authority of the police
29 officer seeking authorization for cooperation. The request for cooperation must:

30 (1) Be in writing.

31 (2) Be submitted at least 72 hours prior to the date of the activity.

32 (3) State the name of the enforcement agency making the request.

33 (4) State the reason for the request.

34 (5) Provide the dates and duration of the activity.

35 (6) Give a detailed description of the scope of the activity, including:

36 a. The purpose of the activity.

37 b. A list of records sought.

38 c. The names of individuals who may be impacted by the activity.

39 d. The manner in which the activity will be carried out.

SYNOPSIS

This Act restricts law enforcement from cooperating with federal agencies conducting immigration enforcement activities at schools or churches without permission from the attorney general.